

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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FIDELINA LUNA,

Plaintiff,

-against-

CAMPBELL SOUP COMPANY, PEPPERIDGE
FARM, INCORPORATED and STEPHEN M.
KOVATCH,

Defendants.

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AMENDED
COMPLAINT
1:21-CV-00962

Plaintiff, FIDELINA LUNA, by her attorneys, CHERNY & PODOLSKY, PLLC, complaining of the defendants, CAMPBELL SOUP COMPANY, PEPPERIDGE FARM, INCORPORATED and STEPHEN M. KOVATCH, alleges, upon information and belief as follows:

JURISDICTION

1. Jurisdiction of this Court is based upon diversity of citizenship between plaintiff and defendants, CAMPBELL SOUP COMPANY, PEPPERIDGE FARM, INCORPORATED and STEPHEN M. KOVATCH, pursuant to 28 U.S.C. § 1332. Although this action was commenced by the plaintiff in the Supreme Court of the State of New York, Bronx County, it was removed by the defendants to the United States District Court for the Southern District of New York pursuant to 28 U.S.C. §1441 (a).

2. The amount in controversy, exclusive of interest and costs, exceeds the sum of \$75,000.00.

3. Venue is properly laid in the Southern District of New York pursuant to 28 U.S.C. § 1391.

PARTIES

4. At all times hereinafter mentioned, the plaintiff, FIDELINA LUNA, was and is a resident of the County of The Bronx, City and State of New York and currently resides at 1975 Sedgwick Ave Bronx, New York 10453.

5. Defendant STEPHEN M. KOVATCH was and still resides at 15 Menna Road Ansonia, CT 06410.

6. Defendant, CAMPBELL SOUP COMPANY, does and/or solicits business within the State of New York.

7. Defendant, CAMPBELL SOUP COMPANY, derived substantial revenues from goods used and/or consumed or services rendered in the State of New York.

8. Defendant, CAMPBELL SOUP COMPANY, is a domestic profit corporation duly organized and existing under and by virtue of the laws of the State of New Jersey, with a principal office at 1 Campbell Place, Camden, New Jersey 08101.

9. Defendant, PEPPERIDGE FARM, INCORPORATED, does and/or solicits business within the State of New York.

10. Defendant, PEPPERIDGE FARM, INCORPORATED, derived substantial revenues from goods used and/or consumed or services rendered in the State of New York.

11. Defendant, PEPPERIDGE FARM, INCORPORATED, is a foreign business corporation duly organized and existing under and by virtue of the laws of the State of New York, with a principal office at 595 Westport Avenue, Norwalk CT 06851.

AS AND FOR A FIRST CAUSE OF ACTION

12. Defendant STEPHEN M. KOVATCH, owned, controlled, maintained and/or operated a certain truck tractor and a 2016 utility trailer that collided with the motor vehicle of the

plaintiff causing her injuries on April 24, 2019.

13. Defendant CAMPBELL SOUP COMPANY owned, operated, maintained, and controlled the aforesaid truck tractor and a 2016 utility trailer that collided with the motor vehicle of the plaintiff causing her injuries on April 24, 2019.

14. Defendant, STEPHEN M. KOVATCH, at all times hereinafter mentioned, was an agent, operator, servant and/or employee of defendant, CAMPBELL SOUP COMPANY.

15. On or about April 24, 2019, defendant, CAMPBELL SOUP COMPANY, was the owner of the aforesaid truck tractor and a 2016 Utility trailer.

16. On or about April 24, 2019, defendant, CAMPBELL SOUP COMPANY, maintained the aforesaid truck tractor and a 2016 Utility trailer.

17. On or about April 24, 2019, defendant, CAMPBELL SOUP COMPANY, controlled the aforesaid truck tractor and a 2016 Utility trailer.

18. On or about April 24, 2019, defendant, CAMPBELL SOUP COMPANY, was the lessor of the aforesaid truck tractor and a 2016 Utility trailer.

19. On or about April 24, 2019, defendant, CAMPBELL SOUP COMPANY, was the lessee of the aforesaid truck tractor and a 2016 Utility trailer.

20. On or about April 24, 2019, defendant, CAMPBELL SOUP COMPANY, negligently hired out the aforesaid truck tractor and a 2016 Utility trailer.

21. Defendant PEPPERIDGE FARM, INCORPORATED owned, operated, maintained, and controlled the aforesaid truck tractor and a 2016 Utility trailer that collided with the motor vehicle of the plaintiff causing her injuries on April 24, 2019.

22. Defendant, STEPHEN M. KOVATCH, at all times hereinafter mentioned, was an agent, operator, servant and/or employee of defendant, PEPPERIDGE FARM,

INCORPORATED.

23. On or about April 24, 2019, defendant, PEPPERIDGE FARM, INCORPORATED, was the owner of the aforesaid truck tractor and a 2016 Utility trailer.

24. On or about April 24, 2019, defendant, PEPPERIDGE FARM, INCORPORATED, maintained the aforesaid truck tractor and a 2016 Utility trailer.

25. On or about April 24, 2019, defendant, PEPPERIDGE FARM, INCORPORATED, controlled the aforesaid truck tractor and a 2016 Utility trailer.

26. On or about April 24, 2019, defendant, PEPPERIDGE FARM, INCORPORATED, was the lessor of the aforesaid truck tractor and a 2016 Utility trailer.

27. On or about April 24, 2019, defendant, PEPPERIDGE FARM, INCORPORATED, was the lessee of the aforesaid truck tractor and a 2016 Utility trailer.

28. On or about April 24, 2019, defendant, PEPPERIDGE FARM, INCORPORATED, negligently hired out the aforesaid truck tractor and a 2016 Utility trailer.

29. On or about April 24, 2019, defendant, STEPHEN M. KOVATCH, was the operator of the aforesaid truck tractor and a 2016 Utility trailer.

30. On or about April 24, 2019, defendant, STEPHEN M. KOVATCH, was controlling the aforesaid truck tractor and a 2016 Utility trailer.

31. On or about April 24, 2019, defendant, STEPHEN M. KOVATCH, was operating and controlling the aforesaid truck tractor and a 2016 Utility trailer with the knowledge of the defendant owner.

32. On or about April 24, 2019, defendant, STEPHEN M. KOVATCH, was operating and controlling the aforesaid truck tractor and a 2016 Utility trailer with the permission of the defendant owner.

33. On or about April 24, 2019, defendant, STEPHEN M. KOVATCH, was operating and controlling the aforesaid truck tractor and a 2016 Utility trailer with the express consent of the defendant owner.

34. On or about April 24, 2019, defendant, STEPHEN M. KOVATCH, was operating and controlling the aforesaid truck tractor and a 2016 Utility trailer with the implied consent of the defendant owner.

35. On or about April 24, 2019, defendant, STEPHEN M. KOVATCH, was operating and controlling the aforesaid truck tractor and a 2016 Utility trailer within the scope of his employment.

36. On or about April 24, 2019, defendant, STEPHEN M. KOVATCH, was operating and controlling the aforesaid truck tractor and a 2016 Utility trailer on the south bound Major Deegan Expressway near Fordham Road, in the County of The Bronx, City and State of New York.

37. That at all times hereinafter mentioned, Major Deegan Expressway, County of The Bronx, New York, is and was a public roadway, street, highway and/or thoroughfare used extensively by the public in general.

38. At the aforesaid time and place, plaintiff, FIDELINA LUNA, was operating her 2001 Honda motor vehicle bearing State of Connecticut registration number AS72970.

39. At the aforesaid time and place, the defendants' truck tractor and trailer came into contact with the motor vehicle of the plaintiff.

40. That as a result of the aforesaid contact, plaintiff, FIDELINA LUNA, was severely and permanently injured.

41. That the aforesaid occurrence was caused wholly and solely by reason of the

negligence of the defendants CAMPBELL SOUP COMPANY, PEPPERIDGE FARM, INCORPORATED and STEPHEN M. KOVATCH.

42. That the negligence of the defendants, CAMPBELL SOUP COMPANY, PEPPERIDGE FARM, INCORPORATED and STEPHEN M. KOVATCH, consisted of owning, operating, maintaining and controlling the aforesaid truck tractor and trailer in a negligent, reckless, and careless manner causing severe personal injuries to plaintiff.

43. That the negligence of the defendant CAMPBELL SOUP COMPANY and PEPPERIDGE FARM, INCORPORATED, consisted of negligent hiring, training, retention, and supervision of its agents, servants and/or employees, including the defendant STEPHEN M. KOVATCH.

44. That the negligence of the defendants, CAMPBELL SOUP COMPANY, PEPPERIDGE FARM, INCORPORATED and STEPHEN M. KOVATCH, consisted of operating the aforesaid truck tractor and trailer in a negligent, reckless, and careless manner; in failing to keep the aforesaid truck tractor and trailer under reasonable and proper control; in failing to operate the aforesaid truck tractor and trailer with due regard for the safety of the plaintiff, the public and others; in failing to keep a proper lookout; in failing to observe what was available to be observed; in failing to observe each other; in failing to avoid contact with and yield the right of way; in failing to allow safe passage to the other motor vehicles; in failing to provide and/or make prompt and timely use of adequate and efficient brakes and steering mechanisms; in operating the aforesaid truck tractor and trailer in such a negligent, careless, reckless wanton and grossly negligent manner as to precipitate the aforesaid accident and personal injuries; in failing to take defensive action; in failing to warn of the approach of the aforesaid truck tractor and trailer. The defendants were otherwise careless, reckless, and

negligent.

45. That by reason of the foregoing, plaintiff FIDELINA LUNA sustained severe and permanent personal injuries, became sick, sore, lame and disabled; suffered injuries to her nervous system; suffered mental anguish, was confined to hospital, bed and home and may, in the future, be so confined; was incapacitated from attending to his usual duties and vocation and may, in the future, be so incapacitated; will suffer a loss and/or limitation of quality of life; and plaintiff, FIDELINA LUNA, was otherwise damaged.

46. That plaintiff, FIDELINA LUNA, sustained serious injuries as defined in Subdivision d of Section 5102 of the New York Insurance Law, and that plaintiff, FIDELINA LUNA, sustained serious injuries and economic loss greater than basic economic loss as to satisfy the exceptions of Section 5104 of the Insurance Law.

47. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602.

48. That by reason of the foregoing, plaintiff FIDELINA LUNA has sustained damages in the sum of TEN MILLION (\$10,000,000.00) DOLLARS.

WHEREFORE, the plaintiff, FIDELINA LUNA, demands judgment in the plaintiff's favor and against the defendants, CAMPBELL SOUP COMPANY, PEPPERIDGE FARM, INCORPORATED and STEPHEN M. KOVATCH, in the sum of TEN MILLION (\$10,000,000.00) DOLLARS; together with costs and disbursements of this action; and for such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

DATED: Brooklyn, New York

February 14, 2022

CHERNY & PODOLSKY, PLLC
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By: _____
Mark L. Mahan Attorney# MM6757